

Plaintiff purchased property with her parents in 2016. At that time, the escrow company made a mistake in drafting the vesting deed. Plaintiff's parents died in 2022 and 2023, respectively, after which Regua discovered the error. Regua brought this action to quiet title to the property. Regua filed a motion for summary adjudication against Crane. On November 19, 2025, this court granted summary adjudication in favor of Regua on her causes of action for quiet title and declaratory relief. (Johnson Dec., ¶13, Ex. H.) Notice of the order granting Regua's motion for summary adjudication was served on Crane on November 19, 2025. (*Id.*)

Crane's proposed cross-complaint "concern alleged control, concealment, and conversion of estate assets following the deaths of Manuel and Victoria Romero." (Crane Decl., ¶13.) The proposed cross-complaint alleges that "The claims asserted herein arise from the handling, control, concealment, and disposition of estate assets and related family property interests and are distinct from the quiet title determination previously addressed by the Court." (X-Comp, ¶ 6.)

Here, Crane has offered no explanation how her claims are related to Regua's quiet title action, or the drafting mistake in 2016 when Regua and her parents purchased property in Fresno, other than that her cross complaint pertains to the same interested parties and property interests. Accordingly, these claims are not compulsory claims, and the court declines to exercise its discretion to grant leave to amend.

Furthermore, Crane has offered no explanation for waiting two years to bring her cross-complaint, and more notably, after this Court has already granted summary adjudication on Regua's claims.

Accordingly, Crane's motion for leave to file a cross-complaint against plaintiff Regua is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 7/28/2026.
(Judge's initials) (Date)

(36)

Tentative Ruling

Re: ***Umpqua Bank v. Sran, et al.***
Superior Court Case No. 25CECG01144

Hearing Date: July 30, 2026 (Dept. 503)

Motion: Plaintiff's Motion to Compel Defendants Megan Saterlee and Kirindeep Sran to Appear for Their Depositions, and for Monetary Sanctions

Tentative Ruling:

To grant. (Code Civ. Proc., § 2025.450.) Defendants Megan Saterlee and Kirindeep Sran are ordered to appear for deposition in person on a date chosen by plaintiff's counsel, within two weeks from service of the order by the clerk, at defense counsel's office. (Code Civ. Proc., § 2025.450, subd. (c)(1).) To impose \$3,572.50 in monetary sanctions against Megan Saterlee and Kirindeep Sran in favor of Colombia Bank, to be paid within 30 days to counsel for Colombia Bank. (Code Civ. Proc., § 2025.450, subd. (g).)

Explanation:

Under Code of Civil Procedure section 2025.450, "If, after service of a deposition notice, a party to the action ... , without having served a valid objection under Section 2025.410, fails to appear for examination, ... the party giving the notice may move for an order compelling the deponent's attendance and testimony..." (Code Civ. Proc., § 2025.450, subd. (a).)

"The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, *when the deponent fails to attend the deposition ... by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.*" (Code Civ. Proc., § 2025.450, subd. (b), italics added.)

"If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Here, plaintiff's counsel noticed the depositions of Megan Saterlee and Kirindeep Sran for January 20, 2026 at 8:30 a.m. and 1:00 p.m., respectively. Defendants did not object to the deposition notices, but requested to reschedule their depositions or conduct the depositions through Zoom. The parties agreed to reschedule the depositions for February 17, 2026. Amended depositions notices were provided. Defendants did not object to the amended deposition notices, but again, requested to reschedule the

depositions. However, despite plaintiff's multiple requests for defendants' availability to reschedule the depositions, defendants failed to respond or otherwise make any further attempt to reschedule the depositions.

Defendants contend that the motion should be denied, because they have no connection or involvement with the operation of the business that is the subject of the action. However, service of a proper deposition notice obligates a party's attendance at deposition. (Code Civ. Proc., § 2025.280, subd. (a).) Although defendants contend that an in-person deposition would impose undue burden due to the distance and their respective scheduling conflicts, they do not contend that the location of the deposition—defense counsel's office, is outside of the statutory geographical limits. Further, defendants' argument that the information would be duplicative is unsupported.

Therefore, defendants are subject to an order compelling them to appear for deposition. They are also subject to sanctions for their willful and unjustified failure to appear for their depositions. As a result, the court will order defendants to appear for their depositions in person on a date chosen by plaintiff's counsel at defense counsel's office. The court will also order defendants pay attorney's fees of \$2,782.50 and costs of \$790. Sanctions against defense counsel does not appear to be warranted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 7/28/2026.
(Judge's initials) (Date)